

LEARNER WORKBOOK SECTION

FORMATIVE ASSESSMENT (OPEN BOOK EXAM)

GIVE EVIDENCE IN COURT - UNIT STANDARD 244182

Full Name and Surname: _____

ID Number: _____ Date of Assessment: _____

Name of Assessor: _____

Learner Signature: _____ Assessor Signature: _____

Pass mark is 70% (60 out of 86)

Competent:

☐

Not Yet Competent:

☐

SKILLS PROGRAM 1
BOOK 3



1. Briefly write in the space provided the name of each of the courts who's roles are listed below: **(6 Marks)**

Role	Court
The highest court in South Africa dealing with constitutional matters	
Can hear criminal and civil cases that are too serious for lower courts.	
Deals with less serious cases and can only give limited sentences	
Only deal with petty crimes such as petty theft	
The highest court for all matters, except those that involve the constitution. Can hear criminal appeal cases.....	
Deal with criminal cases, such as murder, rape, armed robbery and serious assault and can give greater sentences	

2. Below are a list of Court personnel and descriptions of roles and responsibilities. In the table provided below, show which role links to which personnel: **(10 Marks)**

1	The Presiding Officer
2	State Prosecutors
3	Public Defender
4	Court Orderly
5	Clerk of the Court
6	Investigating Officer
7	Interpreter
8	Witness
9	Police Escort
10	Audience

A	The person in charge of the investigation
B	The attorney or advocate representing the State
C	The person who decides a case
D	People who escort the accused into court
E	Someone who ensures the smooth running of the court
F	The attorney or advocate who represents the defendant/accused
G	Members of the public watching the hearing
H	People who translate languages for the court
I	Someone who gives evidence to the court
J	The person in charge of court administration

Personnel	1	2	3	4	5	6	7	8	9	10
Role										

3. State how you would address the following persons during a court hearing: **(4 Marks)**

Person	How you would address them
A female presiding officer at an Ordinary (District) Magistrates Court	
A male defence attorney	
A male presiding officer at a High Court	
A female state prosecutor at a Regional Magistrates Court	

4. The following statement relates to being a witness in court and the requirement to prepare properly. Fill in the missing words in the statement: **(4 Marks)**

“The demeanor of witnesses - which goes to their manner of testifying, their _____ in the witness box, their _____ and _____ and the _____ they create - is one important consideration in deciding where the truth lies. Indeed, the merits of the witnesses for one party and the demerits of the witnesses of his adversary may be decisive one way or the other”.

Per Jones J in Cloete v Birch 1993 (2) (E)

5. Which of the following sources of evidence might you need to refer to when giving evidence in court: **(1 Mark)**

- a. Pocket book
- b. Observation records
- c. Personal experiences
- d. Personal observations
- e. All of the above.

6. What are the 4 general principles of producing evidence at court? **(4 Marks)**

That it should be:

C _____

A _____

R _____

E _____

7. You witness a crash between two cars and the driver of one of the cars tells you that it was his fault. **(1 Mark)**

Which of the following statements would be better to give as clear evidence in court?

- a. The car driver said it was his fault
- b. The driver of the white Renault car registration number DEF456GP said that it was his fault

8. List 4 (four) different types of evidence. **(4 Marks)**

9. Read through the following scenario and indicate the type of evidence that is indicated that you could give: **(10 Marks)**

Scenario	Type(s) of evidence you can give
You are patrolling a block of flats when you hear a door close on the floor above you	
You then see a man coming down the staircase from the top floor	
You know that the only flat on the top floor is flat 12	
You go to the door of flat 12 and a distressed woman opens the door	
The woman tells you that she went out to dinner with the man that just left and that he came back to her flat and has just raped her	
You run down stairs - the man turns, looks at you and then starts running towards a car.	
You see him drop a piece of paper. The man gets into the car and drives off	
You write down the licence number of the car in your pocket book.	
You pick up the piece of paper that you saw the man drop and it is a restaurant bill	
You return to the flat and ask the woman which restaurant she went to with the man. She tells you the name of it and you notice that the bill from the restaurant (you do NOT show her the bill).	

10. Fill in the missing word: **(1 Mark)**

Evidence should be presented to a court in date and time order which is known as being done
_____.

11. Which of the following examples of evidence are normally accepted by courts:
(1 Mark)

- a) Truth
- b) Guesses
- c) Both of the above
- d) Neither of the above

12. Indicate whether the following behaviour would be acceptable when giving testimony in court, by completing "Yes" or "No" in the table below: **(16 Marks)**

Behaviour acceptable	Yes	No
Arrive well prepared and on time at Court		
Address the court by speaking into the provided microphone		
Be too talkative		
Be calm and talk when questioned		
Chew chewing gum or eat anything while in the witness box		
Exaggerate your evidence		
Face the Presiding Officer and address or direct your answers to him/her		
Listen carefully to the question		
Lounge (lean against/relax) in the witness box		
Make jokes and humour the court or try to be a joker		
Stand upright and ensure that your posture is professional		
If you are not sure of an answer to a question you should make your best guess		
Vary your tone of voice		
Wait in the witness box until you are requested to leave		
Wait until the question is asked and then answer		
Sit in the public area inside the court until you are called to testify		

13. In the following examples, you are given examples of tactics sometimes used by defence attorneys when they are cross-examining a witness. Name the tactic and the recommended response: **(6 Marks)**

Example	Tactic name	Recommended response
One question after another with little time to answer		
"was the murder weapon a knife"		
Your name is Gerber, the attorney calls you Grobler		

14. Place the following parts of a court hearing in the order that they usually occur by numbering them from 1 to 11 (where 1 indicates the first and 11 indicating the last) **(11 Marks)**

Court event	Order that the event occurs
Closing the case for the prosecution	
Sentence	
Closing speeches by the Public Prosecutor and Defence	
Cross-examination of first State witness	
Evidence from other State witness	
Evidence for the Defence	
Re-examination of first State witness	
Examination in Chief of State first state witness	
Pleas	
Recall of State witnesses (if required)	
Verdict	

15. List 4 people, or groups of people, that might benefit from the feedback of a witness after a court case has been completed: **(4 Marks)**

16. What 3 things should a witness consider when preparing for a debrief, or feedback process, after giving evidence at court (fill in missing words): **(3 Marks)**

What went _____?

What did not go so _____?

What would they do _____ in the future?

TOTAL MARKS: _____
86